This document has legal consequences.
If you do not understand it, consult your attorney.
The text of this form may not be altered in any manner
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# BUYER'S EXCLUSIVE AGENCY CONTRACT

_____ ("Buyer") hereby appoints _____ (hereinafter referred to as "Broker") to act as the Buyer's exclusive limited agent for the purpose of identifying and negotiating to acquire real property as described below. **"**Broker**"** shall refer to the brokerage and any affiliated licensee. The term "acquire" or "acquisition" shall include the purchase, lease, exchange, or option of real estate.

**TYPE OF PROPERTY SOUGHT**

The type of property sought, as identified by its use, shall be ☐ Residential ☐ Investment ☐ Commercial ☐ Lots ☐ Acreage/Farm *(check all that apply)*. Any additional specifications for the property sought are as follows:

_____

_____

_____

Broker agrees to use reasonable effort and diligence to identify properties listed in the multiple listing service ("MLS") that meet Buyer's specifications, as identified above, and to assist in negotiating terms and conditions for the acquisition of the said property.

Buyer *(check one)* ☐ **Is OR** ☐ **Is Not** a party to other buyer's representation agreement(s). If the Buyer is a party to other buyer representation agreement(s), those agreement(s) shall not be for the same type of property(s) listed under Type of Property Sought.

**TERM**

This Agency Contract begins on the Effective Date and ends at 11:59 p.m. on _____ ("Expiration Date"), together with any written extension or reduction thereof. The "Effective Date" shall be the date of final acceptance thereof, as indicated by the date adjacent to the signature of the last party to sign this Agency Contract or *(specify if otherwise)* _____. Buyer will refer all inquiries and prospects Buyer may receive during the Term from any source to Broker, to avoid the possibility of confusion over brokerage and agency relationships and misunderstandings about liability for compensation. Buyer and Broker, with mutual agreement, may terminate this Contract prior to the expiration date by written agreement.

**PROTECTION PERIOD**

If within _____ days *(0 days if left blank)* after the expiration of this Agency Contract ("Protection Period"), Buyer acquires any property to which Buyer was introduced by Broker, then Buyer agrees to pay Broker the compensation provided for below. However, no additional compensation will be due to Broker if, during this protection period, Buyer enters into an exclusive buyer representation agreement with another broker to acquire a subject property, and the new broker representing Buyer is paid a commission on the acquisition of a home not shown under this agreement.

**COMPENSATION FOR SERVICES**

**Note: The amount of compensation is not set by law. Compensation is set by each broker individually and is negotiable, subject to individual broker policy.**

**Broker Compensation.** If, during this Agency Contract, Buyer enters into a contract to acquire any type of real estate described above, whether through services of Broker, Buyer, or any other broker or person during the Term, Broker shall be due and payable at closing: _____ % of purchase price ($0 if none stated), $_____ as a flat amount ($0 if none stated), **AND** Other: *(describe)* _____ *(N/A if left blank)*. Buyer agrees that the compensation above is the voluntary and knowing choice of Buyer.

**Additional Compensation.** Buyer agrees to pay Broker additional compensation of $_____ ($0 if none stated). This additional compensation ☐ **Shall OR** ☐ **Shall Not** *(check one)* be credited against any other compensation owed by Buyer to Broker and shall be due and payable to Broker on *(if applicable, check one)*:

☐ the Effective Date of this Agency Contract, which shall be deemed earned upon receipt.

☐ only if and on the same date that the other compensation above provided for is payable.

Unless otherwise agreed to in writing, Buyer authorizes Broker to negotiate for and accept the compensation from the seller or listing broker. If Broker receives any compensation from seller or listing broker for services covered by this Agency Contract, that amount will be credited toward Buyer's obligation to pay the above Compensation. If seller does not pay any compensation to Broker, Buyer shall



**Initials of Buyer to acknowledge they have read this page** _____ _____

be solely responsible for the sum of the compensation listed above. In no case shall the amount of compensation received by Broker from all sources be greater than the amount of compensation listed in this agreement.

**Note: Certain loan and assistance programs may not allow buyers to compensate their broker. Those transactions should be conditioned upon the full compensation paid by the Owner or Broker. Confirm the details of your program with your lender.**

**DUAL AGENCY CONSENT**

Does Buyer consent to Broker acting as a dual agent? *(check one)*

☐ **Yes** ☐ **No** ☐ **Not Applicable** because dual agency is not allowed by Broker's company policy. See the Dual Agent Duties and Obligations outlined below.

**BUYER'S LIMITED AGENCY AS STARTING POINT**

Pursuant to this Agency Contract, Broker will initially be acting in the capacity of Buyer's limited agent, with the duties and obligations of a buyer's limited agent under Missouri law as set forth following the parties' signatures below. However, Buyer acknowledges that from time to time, a prospective seller may engage Broker to act in one of several possible capacities with respect to that seller, depending on what brokerage relationships are permitted by Broker's company policy. Under various circumstances, Missouri law may permit or require a conversion of Broker's brokerage relationship with Buyer to a different brokerage relationship. Any conversion to a different brokerage relationship shall only be made upon Buyer's written consent, as required by rule or regulation.

**DESIGNATED AGENCY**

If, as authorized by Missouri law, Broker policy authorizes its affiliated licensees to act as Designated Agents, _____ is appointed as Buyer's Designated Agent. In the event the Designated Agent is not available at any given time, any of the following agents affiliated with the Broker are hereby appointed to represent Buyer without further notice: *(If a Designated Agent is appointed, the Designated Broker must sign this agreement.)*

_____

_____

**REPRESENTATIONS**

By signing below, Buyer acknowledges having entered into this agreement prior to touring any property described on page 1.

**BROKER'S ROLE**

Broker is not an expert in law, tax, financing, surveying, structural, mechanical conditions, hazardous materials, environmental risks, engineering, or other specialized topics. Brokerage strongly encourages contacting the appropriate professional if questions or concerns exist.

**SPECIAL AGREEMENTS** *(none if left blank)*

_____

_____

_____

_____

_____

**BUYER AGREES:**

1) To refer information Buyer may receive during the Term of this Agency Contract for the type of property sought, from any source to Broker, to avoid the possibility of confusion over agency relationship and misunderstandings about liability for compensation. To work exclusively with Broker to identify and acquire the type of property sought during the Term of this Agency Contract.
2) To comply with the reasonable requests of Broker to supply any financial or personal data needed to fulfill the terms of this Agency Contract.
3) To make themselves reasonably available and responsive for all purposes of this Contract.
4) To consult with Broker before visiting any new or existing property of the type sought or contacting any other broker representing sellers to avoid confusion over the agency relationship and misunderstandings about liability for compensation.
5) To not enter into another exclusive buyer representation agreement(s) or similar agreement(s) that conflicts with this Contract, prior to termination of this Contract.

**BUYER ACKNOWLEDGES:**

1) Having read the Dual Agency Duties and Obligations provisions outlined below.
2) This agreement, according to Missouri law, establishes an agency relationship and, therefore, prohibits Broker from acting as a transaction broker. Buyer authorizes Broker to offer subagency and to pay another broker or subagent a portion of the commission.
3) That if a property has had construction work performed, the lien rights of persons who performed work or supplied materials are affected by the requirements of Chapter 429 of the Missouri Revised Statutes. Failure by the property owner to post and record a



**Initials of Buyer to acknowledge they have read this page** _____ _____

timely "notice of intended sale" may affect lien rights and Buyer's ability to get mechanic's lien coverage in Buyer's title insurance policy.

4) That Broker recommends that any offer to purchase a property be conditioned on Buyer obtaining an inspection, survey (if applicable), appraisal, verification of insurability, and title policy.

**REPRESENTING OTHER BUYER**

Buyer understands that Broker has no duty to represent only Buyer, and that Broker may represent other prospective buyers who may be interested in purchasing or leasing the same property or properties that Buyer is interested in acquiring, subject to Missouri law.

**PREVIOUS REPRESENTATION**

Buyer understands that Broker may have previously represented the seller from whom Buyer wishes to purchase the property. During that representation, the Broker may have learned material information about the seller that is considered confidential. Under the law, Broker may not disclose any such confidential information to Buyer.

**FAILURE TO CLOSE**

If an owner of an agreement made on behalf of Buyer fails to close such agreement, with no fault on the part of Buyer, Buyer shall have no obligation to pay the compensation provided for above. If such transaction fails to close because of any fault on the part of Buyer, such compensation will not be waived but will be due and payable immediately. In no case shall Broker be obligated to advance funds for the benefit of Buyer in order to complete a closing.

**SMART HOME TECHNOLOGY PRIVACY CONCERNS**

When acquiring a home with smart technology, it is vital that Buyer address privacy and security risks. Before occupying, Buyer should take precautions: reset and unlink all devices, delete recorded footage, change access codes, unlink voice assistants, clear personal data, and change the Wi-Fi password (if applicable). These steps ensure a secure transition, protecting Buyer's privacy and the property's smart technology integrity.

**SURVEILLANCE/RECORDING**

Notice to Buyer regarding recordings within the property.

Prior to photographing, video graphing, or video telephoning a property without written permission of the seller, Buyer should speak with an attorney. Also, Buyer should be aware that the seller may have a security system that records or allows for remote monitoring of the property, including recording or broadcasting audio. Sellers may be able to listen to conversations on their properties, and Buyer should be aware that any discussions of negotiation strategies held on the property may not be confidential. Buyer hereby releases Broker and employees from any liability that may result from any recording in the property.

**NON-DISCRIMINATION**

The parties understand and agree that properties shall be shown and made available to Buyer without regard to race, color, religion, sex, handicap, familial status, national origin, ancestry, sexual orientation, or gender identity, and in accordance with all local, state, and federal fair housing laws.

**REMEDIES**

If Buyer breaches this Agency Contract or it becomes necessary for Broker to retain an attorney to enforce any of the terms hereof, then without limiting any other right or remedy hereunder or otherwise available at law or inequity, Broker shall be entitled to recover all costs and expenses of litigation incurred, including but not limited to court costs and reasonable attorney fees. The provisions of this paragraph shall survive the expiration or any earlier termination of this Agency Contract.

**INDEMNIFICATION**

Buyer agrees to save and hold Broker harmless from all claims, disputes, litigation, judgments, and costs (including reasonable attorney's fees) arising from Buyer's breach of this Contract to the extent allowed by law.

**FRANCHISE DISCLOSURE**

If Broker is a member of a franchise, the franchisor is not responsible for the acts of said Broker.

**MODIFICATION OF THIS AGENCY CONTRACT**

No modification of any of the terms of this Agency Contract shall be valid and binding upon the parties or entitled to enforcement unless such modification has first been reduced to writing and signed by the parties.

**BROKER DISCLOSURE FORM**

Buyer acknowledges receipt of the Broker Disclosure Form prescribed by the commission (Missouri Real Estate Commission) by either a) on or before the signing of this Agency Contract, or b) upon the Broker obtaining any personal or financial information, whichever occurs first.



**Initials of Buyer to acknowledge they have read this page**_____ _____

**ELECTRONIC SIGNATURES**

All parties agree that this transaction can be conducted by electronic/digital signatures, according to the Uniform Electronic Transaction Act adopted by the State of Missouri.

**Buyer and Broker agree that either party may acknowledge amendments to this Agency Contract by email communications from one of the following email addresses. Authorization is not granted if no email address is provided.**

| | |
|---|---|
| BUYER SIGNATURE DATE | BUYER SIGNATURE DATE |
| Buyer Printed Name | Buyer Printed Name |
| Buyer Current Address | Buyer Current Address |
| Buyer City, State, Zip | Buyer City, State, Zip |
| Buyer Email Address | Buyer Email Address |
| Buyer Phone | Buyer Phone |

☐ Check box to indicate if Buyer is using Additional Signature Rider Form 2051, in which case, an additional signature page is required for each separate rider, addendum, amendment, or other related document.

| | |
|---|---|
| BROKER (Company) | AUTHORIZED AGENT SIGNATURE DATE |
| | Authorized Agent Printed Name |
| | Authorized Agent Email |
| BROKER SIGNATURE DATE<br>*(if required by company policy or the practice of Designated Agency)* | Broker Printed Name |

**RELEVANT ASPECTS OF MISSOURI REAL ESTATE LAW ARE REFERENCED BELOW:**

**DUTIES AND OBLIGATIONS OF LIMITED AGENCY (as required by 339.740 RSMo).**

1. A licensee representing a buyer or tenant as a buyer's or tenant's agent shall be a limited agent with the following duties and obligations:
   (1) To perform the terms of any written agreement made with the client;
   (2) To exercise reasonable skill and care for the client;
   (3) To promote the interests of the client with the utmost good faith, loyalty, and fidelity, including:
      (a) Seeking a price and terms which are acceptable to the client, except that the licensee shall not be obligated to seek other properties while the client is a party to a contract to purchase property or to a lease or letter of intent to lease;
      (b) Presenting all written offers to and from the client in a timely manner regardless of whether the client is already a party to a contract to purchase property or is already a party to a contract or a letter of intent to lease;
      (c) Disclosing to the client adverse material facts actually known or that should have been known by the licensee; and
      (d) Advising the client to obtain expert advice as to material matters about which the licensee knows but the specifics of which are beyond the expertise of the licensee;
   (4) To account in a timely manner for all money and property received;
   (5) To comply with all requirements of sections 339.710 to 339.860, subsection 2 of section 339.100, and any rules and regulations promulgated pursuant to those sections; and
   (6) To comply with any applicable federal, state, and local laws, rules, regulations, and ordinances, including fair housing and civil rights statutes or regulations.
2. A licensee acting as a buyer's agent shall not disclose any confidential information about the client unless disclosure is required by statute, rule, or regulation or failure to disclose the information would constitute a misrepresentation or unless disclosure is necessary to defend the affiliated licensee against an action of wrongful conduct in an administrative or judicial proceeding or before a professional committee. No cause of action for any person shall arise against a licensee acting as a buyer's agent for making any required or permitted disclosure.
3. A licensee acting as a buyer's agent owes no duty or obligation to a customer, except that the licensee shall disclose to any customer all adverse material facts actually known or that should have been known by the licensee. A buyer's agent owes no duty to conduct an independent investigation of the client's financial condition for the benefit of the customer and owes no duty to independently verify the accuracy or completeness of statements made by the client or any independent inspector.
4. A buyer's agent may show properties in which the client is interested to other prospective buyers without breaching any duty or obligation to the client. This section shall not be construed to prohibit a buyer's agent from showing competing buyers the same property and from assisting competing buyers in attempting to purchase or lease a particular property.
5. A client may agree in writing with a buyer's agent that other designated brokers may be retained and compensated as subagents. Any designated broker acting on the buyer's behalf as a subagent shall be a limited agent with the obligations and responsibilities set forth in subsections 1 to 4 of this section.

**MINIMUM BROKERAGE SERVICES (as required by 339.780.7 RSMo).**

Pursuant to Missouri Law, Broker, through its designated broker and/or through one or more affiliated licensees, shall provide, at a minimum, the following services:

1. Accepting delivery of and presenting to the client or customer offers and counteroffers to buy, sell, or lease the client's or customer's property or the property the client or customer seeks to purchase or lease;
2. Assisting the client or customer in developing, communicating, negotiating and presenting offers, counteroffers and notices that relate to the offers and the counteroffers until a lease or purchase agreement is signed and all contingencies are satisfied or waived; and
3. Answering the client's or customer's questions relating to the offers, counteroffers, notices, and contingencies.

**DUAL AGENTS DUTIES AND OBLIGATIONS (as required by 339.750 RSMo).**

1. A licensee may act as a dual agent only with the consent of all parties to the transaction. Consent shall be presumed by a written agreement pursuant to section 339.780.
2. A dual agent shall be a limited agent for both the seller and buyer or the landlord and tenant and shall have the duties and obligations required by sections 339.730 and 339.740 unless otherwise provided for in this section.
3. Except as provided in subsections 4 and 5 of this section, a dual agent may disclose any information to one client that the licensee gains from the other client if the information is material to the transaction unless it is confidential information as defined in section 339.710.
4. The following information shall not be disclosed by a dual agent without the consent of the client to whom the information pertains:
   (1) That a buyer or tenant is willing to pay more than the purchase price or lease rate offered for the property;
   (2) That a seller or landlord is willing to accept less than the asking price or lease rate for the property;
   (3) What the motivating factors are for any client buying, selling, or leasing the property;
   (4) That a client will agree to financing terms other than those offered; and
   (5) The terms of any prior offers or counter offers made by any party.
5. A dual agent shall not disclose to one client any confidential information about the other client unless the disclosure is required by statute, rule, or regulation or failure to disclose the information would constitute a misrepresentation or unless disclosure is necessary to defend the affiliated licensee against an action of wrongful conduct in an administrative or judicial proceeding or before a professional committee. No cause of action for any person shall arise against a dual agent for making any required or permitted disclosure. A dual agent does not terminate the dual agency relationship by making any required or permitted disclosure.
6. In a dual agency relationship, there shall be no imputation of knowledge or information between the client and the dual agent or among persons within an entity engaged as a dual agent.



**Initials of Buyer to acknowledge they have read this page**_____ _____